

Court No. - 4

Case :- WRIT - C No. - 6590 of 2022

Petitioner :- Pawan Kumar Alias Pawan

Respondent :- State Of U.P. Thru. Prin.Secy. Of Revenue Govt. Of U.P.
Civil Sectr. Lko. And Others

Counsel for Petitioner :- Avinash Chandra Pandey

Counsel for Respondent :- C.S.C.,Manish Jauhari

Hon'ble Attau Rahman Masoodi,J.

Hon'ble Om Prakash Shukla,J.

Heard Sri Avinash Chandra Pandey, learned counsel for the petitioner and Sri Manish Jauhari, learned Standing Counsel for the State.

The petitioner was a consumer of electricity against a valid commercial connection. The petitioner having suffered loss in the business was unable to run his business, as such, became unable to pay the electricity dues. Non-payment of electricity dues quantified at a sum of Rs.35,880/-, led to disconnection of the electricity temporarily with a notice of payment within 45 days, failing which, the electricity was to be disconnected permanently without any further notice. The amount mentioned in the notice dated 05.01.2019 has not been paid till date.

As per the provisions of Clause 4.38 of Electricity Supply Code,2005, non-payment of dues leading to temporary disconnection would enable the authorities of the Corporation to recover the surcharge up to a maximum period of 8 months from the date of temporary disconnection but not beyond.

In the present case, however, once the permanent disconnection became automatic on the expiry of 45 days, there is no reason as to why any surcharge may be levied upon the petitioner beyond the period of notice. Recovery proceedings have been initiated against the petitioner treating, as if, the minimum charges could be levied against the petitioner indefinitely notwithstanding the fact that the electricity connection stood permanently disconnected in terms of the notice dated 05.01.2019 on the expiry of 45 days. Recovery of the dues even after the consequence of disconnection of electricity permanently could not be explained by Sri Manish Jauhari, learned counsel for the opposite parties in the light of the relevant provision. It is however submitted that the dues payable as on date by the petitioner in terms of Clause 4.38 of the Electricity Supply Code, 2005 shall be determined afresh keeping in view the terms of notice dated 05.01.2019. The fresh assessment made as per the relevant provisions in the light of notice shall be informed to the petitioner not later than a period of one month from today.

Let the fresh assessment of outstanding dues be informed to the petitioner within the aforesaid period who undertakes to pay the same in terms of the order finally passed by the authorities.

The recovery proceedings going on against the petitioner shall remain in abeyance and the same

shall be restricted to the amount which may be determined by the authorities in terms of this order. The petitioner undertakes to comply with the order passed by the authorities

The security amount returnable, if any, may also be adjusted towards the liability.

The writ petition is accordingly ***disposed of.***

Order Date :- 22.9.2022

Arti/-

(Om Prakash Shukla,J.)

(Attau Rahman Masoodi,J.)